

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Helsel v. West Coast Mennonite Central Committee, Inc.***
Superior Court Case No. 25CECG03228

Hearing Date: June 11, 2026 (Dept. 501)

Motion: Cross-Defendants' Motion to Strike

**If oral argument is timely requested, it will be entertained on
Thursday, June 18, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

To continue the motion to Thursday, July 23, 2026 at 3:30 p.m. in Department **403**, in order to allow the parties to meet and confer *in person or by telephone*, as required. If this resolves the issues, cross-defendants shall call the calendar clerk to take the motion off calendar. If it does not resolve the issues, counsel for cross-defendants shall file a declaration, on or before July 13, 2026, stating the efforts made. If no declaration is filed, the motion will be taken off calendar.

Explanation:

Under Code of Civil Procedure section 435.5, “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).) “As part of the meet and confer process, the moving party shall identify all of the specific allegations that it believes are subject to being stricken and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 435.5, subd. (a)(1).)

“The moving party shall file and serve with the motion to strike a declaration stating either of the following: (A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion to strike, and that the parties did not reach an agreement resolving the objections raised by the motion to strike. (B) That the party who filed the pleading subject to the motion to strike failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 435.5 subd. (a)(3)(A), (B), paragraph breaks omitted.)

Here, counsel for cross-defendants has filed a declaration which indicates a letter was sent by email on January 27, 2026 stating the grounds for the motion to strike and requesting a response from cross-complainant's counsel by February 7, 2026. (Vogt Decl., ¶ 4, Ex. A.) After not receiving a response to the letter, the motion to strike was filed. (*Id.* at ¶ 5.) The court notes that the motion was filed on February 6, 2026, before the letter's deadline to respond had passed. The declaration does not show that counsel engaged in good faith meet and confer efforts before filing the demurrer and motion to strike.

The parties must engage in good faith meet and confer, in person or by telephone, as set forth in the statute. The court will continue the hearing to allow the parties to meet and confer, and only if efforts are unsuccessful will it rule on the merits.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 6/9/2026
(Judge's initials) (Date)